arguments that a caretaking relationship was formed because Decedent was given clothes and a warm room to occupy are too general. Any hospital will give a naked patient a hospital gown. A hospital cannot help but have its patients be indoors, too. The argument that SUTTER SOLANO assumed responsibility for Decedent's care because it monitored his vital signs is likewise unavailing because it attempts to impose a caretaking relationship on routine, universal emergency room activities. Further, Plaintiffs allege that SUTTER SOLANO did precisely the opposite of assuming responsibility for Decedent's needs where its staff marked him for referral to social services. (1AC at ¶ 25.) Even acknowledging the allegations of Decedent's altered mental state the fact remains that SUTTER SOLANO did not care for Decedent's basic needs in any but the most minimal and incidental ways for any but the most fleeting and insignificant time. Plaintiffs do not state a cause of action for dependent adult neglect on account of failure to state a caretaking or custodial relationship.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiffs do not offer a directed argument as to amendment, only requesting leave to amend without demonstration of what additional facts they could allege that would cure identified defects.

Conclusion. SUTTER SOLANO's demurrer to the fourth cause of action in the first amended complaint is sustained without leave to amend.

ELAINE SCIACCA and KK&G INC. vs. AHMED ALSHERIF
Case No. CU26-02679

Anti-SLAPP Motion

TENTATIVE RULING

On the Court's own motion, the hearing will be continued. The Parties are to address what consideration, if any, should be given to the pending writ before the Court of Appeal in selecting new hearing date.

CLAUDIA GONZALEZ vs. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

The court has received supplemental briefing from Plaintiff as authorized at the July 10, 2026 hearing. The court has not received supplemental briefing from MEYER.

Legal Standard. Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or contemptible" and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code, § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid.*) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital*, *supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the conduct and its outrageous nature. (*Ibid.*) A plaintiff need not necessarily establish that any particular committee or officer of the corporation acted on a particular date with malice, though; it is enough if the evidence permits a clear and convincing inference that authorized persons within the corporate hierarchy acted despicably. (*Romo v. Ford*

Motor Co. (2002) 99 Cal.App.4th 1115, 1140 (*Romo*), disapproved on other grounds in *People v. Ault* (2004) 33 Cal.4th 1250, 1272 at fn. 15.) That is, a plaintiff may satisfy the "managing agent" requirement in the corporate context through evidence, even circumstantial evidence, showing information in the possession of the corporation and the structure of management decision-making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated. (*Id*. at p. 1141.)

Objections to Evidence. MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion.

<u>MEYER's #1-2, 17.</u> Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

<u>MEYER's #13, 29-32.</u> What Plaintiff told Ms. Luciano is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

<u>MEYER's #14, 42, 44, 46.</u> What Plaintiff told Ms. Calisa is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

Likelihood of Proving Punitive Damages Against MEYER. Plaintiff's supplemental declaration of counsel filed July 14, 2026 introduces into evidence Plaintiff's deposition, wherein she testifies that PEREZ made statements including and not limited to the following during the course of her employment with MEYER: "men are always right," "men are the head of the household," "men make the rules." This evidence of repeated harassing statements demonstrates a likelihood that it can be proven at trial that PEREZ engaged in malicious and/or oppressive harassment of Plaintiff based on her sex and/or gender, in turn supporting potentially supporting imposition of punitive damages against PEREZ.

Plaintiff's evidence also demonstrates a likelihood of proving at trial that MEYER ratified PEREZ's harassing conduct and so is potentially liable for punitive damages. Plaintiff notified MEYER of PEREZ's aggressive conduct in a March 4, 2021 email to MEYER's Vice President of Human Resources Jennifer Bledsoe. In a subsequent email on March 9, 2021 to Chris Banning, MEYER's president, Bledsoe admitted and conveyed to Banning awareness that PEREZ's aggressive conduct was directed at his female direct reports, suggesting animus based on sex and/or gender, and that PEREZ's aggressive conduct was driven at least in part by cultural animus. Later that same week Banning increased PEREZ's pay twice, providing evidence of approval of PEREZ's conduct. When MEYER reduced its workforce for the stated reason of cost savings, Plaintiff was the only employee terminated; further, Banning approved the cost savings proposal as it was presented by PEREZ. This evidence further suggests ratification of PEREZ's actions against Plaintiff.

The court finds that the evidence presented suffices, for purposes of the instant motion, to demonstrate that Plaintiff has a substantial probability of obtaining punitive damages against MEYER at trial based on ratification of PEREZ's harassing conduct.

Conclusion. Plaintiff's motion is granted.

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